

Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF STA ELENA
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OFFICE OF THE SANGGUNIANG BAYAN

EXCERPT FROM THE MINUTES OF THE 106TH REGULAR SESSION OF THE 18TH SANGGUNIANG BAYAN OF STA ELENA, CAMARINES NORTE HELD ON SEPTEMBER 24, 2024.

- Present -

Hon. Ryan Jeffrey T. Mendoza
Vice Mayor/Presiding Officer

Hon. Tomasito V. Sargento
Floor Leader

Members

Hon. Arnold C. Leynes	Hon. Bonifacio B. Argarin
Hon. Howard Dom T. Mendoza	Hon. Marco Paulo B. Angeles
Hon. Myrna M. Comia	Hon. Eugene Z. Pioquinto
Hon. Gebro B. Regencia - Ex – Officio member, SK Rep.	

- Absents -

Hon. Ricardo B. Bueno - Councilor (On Forced Leave)
Hon. Fermin V. Gutierrez - Ex – Officio member, LNB Rep. (On Official Business)

MUNICIPAL ORDINANCE NO. 184 - 2024

AN ORDINANCE ESTABLISHING THE LOCAL TOURISM CODE OF THE MUNICIPALITY OF STA. ELENA, CAMARINES NORTE, AMMENDING MUNICIPAL ORDINANCE NO. 84 - 2024 FOR THE PURPOSE HEREOF;

AUTHORS: Coun. HOWARD DOM T. MENDOZA
Coun. TOMASITO V. SARGENTO

EXPLANATORY NOTE

The Local Tourism Code of Sta. Elena, Camarines Norte, is established to provide a comprehensive framework for the development, regulation, and promotion of tourism within the municipality. This Ordinance aligns with the national tourism policies outlined in Republic Act No. 9593 (Tourism Act of 2009) and other relevant laws, circulars, and guidelines.

Tourism is a vital component of the municipality's economic development strategy, and this Code aims to ensure that tourism growth is sustainable, inclusive, and respectful of the local culture and environment. The establishment of the Municipal Tourism Office, the zoning of tourism areas, and the regulations on environmental and cultural preservation are designed to achieve these objectives.

This Ordin2ance also emphasizes the importance of community involvement, safety, and security in tourism, ensuring that the benefits of tourism are felt across all sectors of society. The provisions for funding and incentives are intended to attract investments that align with the municipality's tourism vision, while the monitoring and evaluation mechanisms will ensure that tourism development remains on track and responsive to emerging challenges.

WHEREAS, the 1987 Philippine Constitution mandates the State to promote a balanced and healthful ecology in accord with the rhythm and harmony of nature and to preserve the Filipino culture;

WHEREAS, Republic Act No. 9593, otherwise known as the "Tourism Act of 2009," declares tourism as an indispensable element of the national economy and an industry of national interest and importance, thereby promoting sustainable tourism development;

WHEREAS, the Local Government Code of 1991 (Republic Act No. 7160) empowers local government units (LGUs) to enact ordinances and issue resolutions necessary for the promotion and development of tourism within their jurisdictions;

WHEREAS, the Municipality of Sta. Elena, Camarines Norte, recognizing its rich cultural heritage, natural attractions, and potential as a tourist destination, aims to establish a local tourism code to regulate, promote, and sustain tourism development in the municipality;

WHEREAS, Sta. Elena is known for its rich agricultural products, including palay (rice), isda (fish), and niyog (coconut), which play a significant role in the economy, history, and culture of the municipality;

WHEREAS, there is a need to establish a festival that will celebrate and promote the products of the municipality, provide economic opportunities to the local populace, and foster unity and pride among its residents;

WHEREAS, the celebration of a local festival is an effective tool for promoting tourism, local industries, and preserving cultural heritage, thus contributing to the overall development of the municipality;

NOW, THEREFORE, be it ordained by the Sangguniang Bayan of the Municipality of Sta. Elena, Camarines Norte in session assembled:

SECTION 1. TITLE - This Ordinance shall be known as the "**STA. ELENA TOURISM CODE**"

SECTION 2. DECLARATION OF POLICY - The Municipality of Sta. Elena, Camarines Norte, hereby declares its policy;

1. To promote, develop, and regulate tourism activities within its jurisdiction in a manner that is sustainable, inclusive, and respectful of local culture and traditions.
2. Tourism development shall be guided by the principles of environmental stewardship, cultural preservation, and economic empowerment.
3. The PADAYOG (Palay, Isda at Niyog) Festival is hereby declared the official festival of the Municipality of Sta. Elena, Camarines Norte. The festival shall be celebrated annually with a month long activity every month of June every year culminating at the foundation day of the municipality every 21st day of the month annually.

SECTION 3. DEFINITION OF TERMS – the following terms and phrase included in this ordinance shall be construed and interpreted as follows:

- a. **Tourism Zone** – Any section of a region which attracts travelers, often because of its scenery, objects of interest or recreational activities.
- b. **Tourism** - social, cultural and economic phenomenon which entails the movement of people to countries or places outside their usual environment for personal or business/professional purposes.
- c. **Tourism Code** - is an ordinance that exhaustively covers a complete system of laws on the subject. An ordinance regulates the way in which things are done or should be done by tourists and other tourism stakeholders in order to attain their tourism goals and objectives and maintain order.
- d. **Indigenous Practices** - This refers to traditional knowledge, skills, and techniques passed down through generations in a particular community or culture. These practices are often closely tied to the local environment and resources and are shaped by social and cultural factors.
- e. **Cultural Heritage** - is the heritage of tangible and intangible heritage assets of a group or society that is inherited from past generations. Not all heritages of past generations are "heritage"; rather, heritage is a product of selection by society.

- f. **Cultural Sites** – or Cultural landscapes include neighborhoods, parks and open spaces, farms and ranches, sacred places, etc. Cultural landscapes include tangible and intangible characteristics, including: Natural systems and features.
- g. **Tax Breaks/incentives** - refers to a benefit the government offers that reduces your total tax liability. Tax breaks are made possible by tax laws and typically come in the form of credits and deductions.
- h. **Tourist Destination** – is a destination or location along with its tourism value that a person travels to, and that is distinct from their usual place of residence. A geographical region that attracts tourists due to its attractiveness and specific characteristics. It can be defined as a territory with natural, infrastructural, and recreational capacities that are appealing to tourists and where tourism activities can take place

SECTION 4. OBJECTIVES - The objectives of this Tourism Code are:

- a. To promote the Municipality of Sta. Elena as a prime tourism destination by highlighting its natural and cultural attractions;
- b. To ensure the sustainable management and development of tourism sites and resources within the municipality;
- c. To protect and preserve the cultural heritage and traditions of Sta. Elena and its people;
- d. To encourage community participation in tourism development and ensure that the benefits of tourism are equitably distributed among local residents;
- e. To establish guidelines and regulations for the operation of tourism-related businesses and activities to ensure the safety and satisfaction of tourists;
- f. To foster collaboration among government agencies, private sector partners, and local communities in tourism planning and management.

SECTION 5. OBJECTIVES OF THE FESTIVAL - The objectives of the PADAYOG Festival are as follows:

- a. To promote the agricultural and aquaculture products of the municipality, particularly palay, isda, and niyog;
- b. To preserve and promote the cultural heritage of Sta. Elena;
- c. To boost local tourism and attract visitors from nearby regions and beyond;
- d. To provide economic opportunities for local farmers, fisherfolk, entrepreneurs, and other sectors through trade fairs, exhibitions, and other activities;
- e. To foster unity, pride, and community spirit among the people of Sta. Elena.

SECTION 6. FESTIVAL ACTIVITIES - The PADAYOG Festival shall include, but not be limited to, the following activities:

- a. Grand parade featuring floats and participants showcasing palay, isda, and niyog;
- b. Trade fairs and exhibits of local products;
- c. Cultural presentations, contests, and performances;
- d. Agricultural, aquaculture, and coconut industry seminars and workshops;
- e. Sporting events, culinary competitions, and community outreach programs.
- f. The Sta. Elena Tourism council may include other activities related to the celebration of PADAYOG festival of the municipality subject to approval through a resolution of the local Sanggunian.

SECTION 7. SCOPE AND COVERAGE - This Tourism Code shall apply to all tourism-related activities, sites, establishments, and stakeholders within the Municipality of Sta. Elena, Camarines Norte. This includes, but is not limited to, natural attractions, cultural sites, accommodation facilities, restaurants, tour operators, and other tourism-related businesses.

SECTION 8. CREATION OF THE MUNICIPAL TOURISM OFFICE - There is hereby created a Municipal Tourism Office (MTO) under the Office of the Mayor, which shall be responsible for the implementation of this Tourism Code and the overall management of tourism activities in the municipality. The MTO shall collaborate with other government agencies to ensure the effective implementation of this ordinance within the municipality

The functions of the MTO shall include, but not be limited to:

- a. Tourism Planning and Development - Formulate and implement a comprehensive tourism development plan that aligns with national tourism strategies and local priorities;
- b. Promotion and Marketing - Develop and execute marketing strategies to promote Sta. Elena as a tourist destination, including participation in tourism fairs, social media campaigns, and the production of promotional materials;
- c. Tourism Regulation - Monitor and regulate tourism-related businesses and activities to ensure compliance with national laws, local ordinances, and industry standards;
- d. Cultural and Environmental Conservation - Work closely with relevant agencies and organizations to protect cultural sites and ensure the sustainability of natural attractions;
- e. Community Involvement - Engage local communities in tourism activities through capacity-building programs, partnerships, and equitable benefit-sharing mechanisms;
- f. Data Collection and Research - Gather and analyze tourism-related data to inform policy decisions and improve the quality of tourism services;
- g. Coordination and Collaboration - Foster partnerships with national and regional tourism authorities, non-governmental organizations, and the private sector for the effective implementation of tourism programs.

SECTION 9. CREATION OF STA. ELENA TOURISM COUNCIL – there shall be created the **STA. ELENA TOURISM COUNCIL** with the following functions and composition:

Functions of Sta. Elena Tourism Council

1. Tourism Development:
 - Develop and implement strategies for sustainable tourism growth in Sta. Elena.
 - Identify and promote key tourism sites and experiences within the region.
2. Marketing and Promotion:
 - Design and execute marketing campaigns to attract both local and international tourists.
 - Organize tourism-related events, fairs, and festivals to showcase Sta. Elena's offerings.
3. Coordination and Collaboration:
 - Collaborate with local government units, private sector stakeholders, and community organizations to enhance tourism initiatives.
 - Liaise with national tourism bodies to align Sta. Elena's tourism goals with broader national strategies.
4. Regulation and Standards:
 - Ensure compliance with local and national tourism regulations by businesses and service providers.
 - Implement quality standards for tourism services, accommodations, and infrastructure.

- 5. Training and Capacity Building:
 - Offer training programs for local businesses and communities engaged in tourism.
 - Enhance the skills of tourism professionals in areas such as customer service, hospitality, and eco-tourism.
- 6. Sustainability and Conservation:
 - Advocate for and implement eco-friendly tourism practices.
 - Protect and preserve natural and cultural heritage sites from the adverse impacts of tourism.
- 7. Funding and Resource Allocation:
 - Manage and allocate budgets for tourism-related projects and initiatives.
 - Seek funding from governmental and private sources to support tourism development.
- 8. Research and Data Collection:
 - Conduct research and surveys to understand tourist preferences, behaviors, and trends.
 - Use collected data to inform tourism planning and improve decision-making processes.

Composition of Sta. Elena Tourism Council

- Chairperson: Municipal Mayor
- Co-Chairperson: Sangguniang Bayan Chairman Committee on Tourism
- Vice-Chairperson: Municipal Tourism Officer
- Members:
 - Municipal Planning and Development Officer
 - Municipal Agriculturist
 - Municipal Treasurer
 - Municipal Solid Waste Management Officer
 - Municipal Social Welfare Development Officer
 - Liga ng mga Barangay President
 - Business Permits and Licensing Office

Private Sector Representatives: Members from the local tourism industry, including hotel owners, tour operators, and restaurateurs, who provide insights from the business community.

Community Leaders: Representatives from local communities, especially those directly affected by tourism, to ensure community interests are considered.

Environmental and Cultural Experts: Specialists who advise on sustainable tourism practices and the preservation of cultural and natural resources.

Non-Governmental Organizations (NGOs): Representatives from NGOs working in tourism, environmental conservation, or community development, who bring additional expertise and perspectives.

Youth and Women’s Representatives: Members who represent the interests of youth and women in the community, ensuring inclusivity in tourism planning and initiatives.

Secretariat: A team from the Municipal Tourism Officer, responsible for managing the day-to-day operations of the council, including administrative tasks, communication, and documentation.

SECTION 10. TOURISM PLANNING AND ZONING - The Municipality of Sta. Elena, through the MTO and in coordination with the Municipal Planning and Development Office (MPDO), shall identify and designate specific areas within the municipality as tourism zones or clusters based on their potential, accessibility, and sustainability. These zones shall be subject to zoning regulations to ensure the appropriate use of land and resources.

SECTION 11. TOURISM - RELATED BUSINESS REGISTRATION AND ACCREDITATION - All tourism-related businesses and establishments operating within the Municipality of Sta. Elena are required to register with the MTO and Department of Tourism (DOT) as stated in Republic Act No. 9593 otherwise known as “THE TOURISM ACT OF 2009”. The MTO shall maintain a registry of all accredited tourism establishments and ensure their compliance with applicable standards.

Tourism related businesses or establishment or “Tourism Enterprises” refers to facilities, services and attractions involved in tourism, such as, but not limited to: travel and tour services; tourist transport services, whether for land, sea or air transportation; tour guides; adventure sports services involving such sports as mountaineering, spelunking, scuba diving, and other sports activities of significant tourism potential; convention organizers; accommodation establishments, including, but not limited to, hotels, resorts, apartelles, tourist inns, motels, pension houses, and home stay operators; tourism estate management services, restaurants, shops and department stores, sports and recreational centers, spas, museums and galleries, theme parks, convention centers and zoos;

There shall be a one-time registration fee to be paid at Municipal Treasurer’s Office in the amount of One Thousand Pesos (₱1,000.00) for every tourism-related business and shall be issued a certification by the Municipal Tourism Office which shall be always displayed conspicuously at the establishment.

SECTION 12. ENVIRONMENTAL MANAGEMENT AND SUSTAINABILITY - All tourism activities within the municipality shall be conducted in a manner that minimizes environmental impact and promotes sustainability. The following guidelines shall be observed:

- a. Environmental Impact Assessments - All tourism development projects shall undergo environmental impact assessments (EIAs) in accordance with national laws and DENR guidelines;
- b. Waste Management - Tourism establishments and operators shall implement proper waste management practices, including waste segregation, recycling, and disposal, in accordance with local ordinances and national regulations such as but not limited to RA 9003 otherwise known as the Solid Waste Management Act of 2000;
- c. Conservation of Natural Resources - Activities that could degrade natural resources, such as deforestation, illegal fishing, and unregulated construction, are strictly prohibited within tourism zones.

SECTION 13. CULTURAL HERITAGE PROTECTION - The Municipality of Sta. Elena recognizes the importance of preserving its cultural heritage. The following provisions shall guide the protection of cultural sites and traditions:

- a. Inventory of Cultural Sites - The MTO, in collaboration with the National Commission for Culture and the Arts (NCCA), shall conduct an inventory of cultural heritage sites within the municipality and ensure their protection;
- b. Promotion of Local Culture - The MTO shall organize and promote cultural festivals, performances, and exhibitions that showcase the rich heritage of Sta. Elena;
- c. Protection of Indigenous Practices - The Municipality shall safeguard indigenous practices, rituals, and knowledge systems from exploitation and ensure that they are respected and preserved.

SECTION 14. COMMUNITY INVOLVEMENT AND CAPACITY BUILDING - The MTO shall implement programs to enhance the capacity of local communities to participate in and benefit from tourism. These programs may include:

- a. Training and Education - Conduct training programs on tourism-related skills, such as but not limited to hospitality management, tour guiding, and handicraft production;
- b. Community-Based Tourism - Support the development of community-based tourism initiatives that provide direct benefits to local residents;
- c. Equitable Benefit-Sharing - Ensure that the economic benefits of tourism are equitably distributed among the community, particularly marginalized and vulnerable groups.

SECTION 15. SAFETY AND SECURITY - The Municipality of Sta. Elena shall ensure the safety and security of tourists in coordination with the Philippine National Police and the Barangay Police through the following measures:

- a. Tourist Assistance Centers - Establish tourist assistance centers in key areas to provide information, assistance, and emergency services to tourists;
- b. Coordination with Law Enforcement - Collaborate with local law enforcement agencies to maintain peace and order in tourism zones and respond promptly to any incidents;
- c. Health and Safety Standards - Ensure that all tourism establishments adhere to health and safety standards as prescribed by national and local regulations.

SECTION 16. FUNDING AND INCENTIVES - The necessary funds for the implementation of this Tourism Code and the operation of the Municipal Tourism Office shall be appropriated annually from the Municipal General Fund. The Municipality may also seek funding from national government agencies, international organizations, and the private sector.

The Municipality of Sta. Elena may offer incentives, such as tax breaks and grants, to encourage investments in tourism-related infrastructure and services, provided that these investments align with the principles of sustainability and community benefit and in consonance with the existing local and national regulations in regards to taxation.

SECTION 17. MONITORING AND EVALUATION - The MTO shall establish a monitoring and evaluation system to assess the effectiveness of tourism programs and initiatives. This system shall include regular reporting, data collection, and stakeholder consultations to ensure continuous improvement. The MTO shall submit report regarding the status of tourism industry in the country and suggest improvements for the development of the industry within the municipality to the Office of the Mayor and suggest such ordinances that may be needed to for the proper regulations of tourism industry in the municipality.

SECTION 18. PENALTIES AND SANCTIONS - Any person or entity found violating the provisions of this Tourism Code shall be subject to penalties as prescribed by national laws, local ordinances, and regulations. The Sangguniang Bayan may impose fines, suspension, or revocation of licenses and permits, depending on the severity of the violation.

SECTION 19. SEPARABILITY CLAUSE - If any provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions shall continue to be in full force and effect.

SECTION 20. REPEALING CLAUSE - All ordinances, resolutions, executive orders and issuances inconsistent with this Ordinance are hereby repealed or modified accordingly.

SECTION 21. EFFECTIVITY CLAUSE - This Ordinance shall take effect immediately upon its approval and publication in accordance to the provision of Local Government Code of 1991.

ENACTED this 24th day of **SEPTEMBER**, 2024, on motion made by Coun. **HOWARD DOM T. MENDOZA**, seconded by SK Fed. Pres. **GEBRO B. REGENCIA**.

I HEREBY CERTIFY to the approval of the foregoing resolution;

GLORIA P. LALLO
SB Secretary

Conforme:

HOWARD DOM T. MENDOZA
Chairman, Committee on Finance

TOMASITO V. SARGENTO
Chairman, Committee on Tourism

ATTESTED BY:

RYAN JEFFREY T. MENDOZA
Municipal Vice Mayor
Presiding Officer

APPROVED BY HER HONOR, THE MAYOR, THIS ____ DAY OF OCTOBER, 2024.

BERNARDINA E. BORJA
Municipal Mayor